

- RAG Learning

3A.1 US Constitution and Federalism

Politics — Edexcel (9PL0) — Component 3A: Comparative Politics — USA

Exam Tip: Component 3 has two routes. This is **3A (USA)**; the alternative is **3B (Global Politics)**. You sit one, never both. The paper is Section A (one 12-mark from a choice of two), Section B (a compulsory 12-mark comparative question) and Section C (two 30-mark from a choice of three).

This topic underpins the whole of 3A: the Constitution's codification and entrenchment explain why the Supreme Court matters so much, why gridlock recurs, and why federalism has been contested for two centuries.

Codification — the constitution is collected in a single authoritative document.

Entrenchment — it can be amended only by a special and demanding procedure.

Enumerated powers — powers explicitly listed as belonging to the federal government.

Implied powers — powers inferred as necessary to carry out the enumerated ones.

Separation of powers — legislative, executive and judicial authority held by different institutions.

Checks and balances — each branch holds powers limiting the others.

Bipartisanship — co-operation between the two parties, which the system's supermajority requirements demand.

Limited government — government restricted by the Constitution to defined powers.

Federalism — power constitutionally divided between national and state governments.

Judicial review — the courts' power to declare acts unconstitutional.

1. The nature of the US Constitution

Feature	Detail	Consequence
Codified	A single document of seven articles plus 27 amendments, ratified 1788	The rules are knowable and enforceable in court
Entrenched	Amendment requires two-thirds of both houses then ratification by three-quarters of the states	Protected from transient majorities; a determined minority can block change
Vague	Broad language: "necessary and proper", "cruel and unusual", "commerce among the several States"	Meaning is settled by interpretation, which gives the Supreme Court a continuing constitutional role
Blend of specificity and generality	Precise on procedure (terms, quorums), general on principle	Allows adaptation without amendment — and shifts the amending function to the courts

The amendment process

Proposal: two-thirds of both houses of Congress, or a constitutional convention called by two-thirds of state legislatures (never used). **Ratification:** three-quarters of state legislatures, or state conventions (used once, for the 21st Amendment).

Only **27 amendments** in over two centuries, and the first ten — the Bill of Rights — were effectively part of the original bargain. Later amendments of note: the 13th, 14th and 15th (Reconstruction); the 16th (income tax); the 19th (women's suffrage); the 22nd (two-term limit); the 26th (voting age 18).

Too difficult?	Appropriately difficult?
Provisions a large majority reject persist — Electoral College reform commands support and is effectively impossible	Entrenchment protects fundamental rights and the federal bargain from transient majorities
Change is displaced into the courts, transferring the amending function to unelected judges	An amendment that passes commands genuine national consensus

Small states can block reform that disadvantages them

A constitution changed easily would offer no more security than ordinary legislation

Exam Tip: The sharpest point about entrenchment is that difficulty of amendment does not prevent constitutional change — it determines *who makes it*. Because Article V is effectively unusable, the Supreme Court has become the de facto amending body, which is why confirmations carry the stakes they do.

2. Principles of the Constitution

Principle	How it operates
Separation of powers	Congress legislates, the President executes, the courts adjudicate. No person may serve in more than one branch — the sharpest contrast with the UK's fusion
Checks and balances	Veto and override; Senate confirmation and treaty ratification; judicial review; impeachment; the power of the purse
Federalism	Enumerated federal powers; the Tenth Amendment reserves the rest to the states or the people
Limited government	Government confined to defined powers, with rights placed beyond its reach
Bipartisanship	Not a rule but a requirement: supermajority thresholds mean action needs cross-party agreement

Checks and balances in detail

- **Congress over the President:** override a veto by two-thirds of both chambers; confirm or reject appointments (Senate); ratify treaties by two-thirds (Senate); appropriate all spending; investigate; impeach and try.

- **The President over Congress:** the veto; the power to recommend legislation; executive orders and agreements; the bully pulpit.
- **The courts over both:** judicial review of statutes and executive action.
- **The others over the courts:** presidential nomination; Senate confirmation; impeachment of judges; constitutional amendment to reverse a ruling; Congress controls the size of the Court and most of its appellate jurisdiction.

Gridlock

Separate elections on different cycles produce **divided government** frequently, and no mechanism exists to resolve disagreement between institutions. Every significant power is shared, so each is a veto point. The Senate **filibuster** adds a sixty-vote threshold the Constitution nowhere requires. Polarisation removed the cross-party overlap that once supplied the coalitions the system demands.

Gridlock is therefore the intended consequence of a design meant to prevent tyranny by making concerted action difficult — but the framers did not anticipate disciplined national parties, which is what converted a check into a blockage.

3. US federalism

Phase	Character	Drivers
Dual federalism (to 1930s)	Federal and state governments in largely separate spheres — "layer cake"	Narrow reading of federal power
Co-operative federalism (1930s–60s)	Overlapping responsibilities; federal grants shaping state policy — "marble cake"	New Deal; Great Society; broad commerce clause readings
New Federalism (1970s–90s)	Powers and discretion returned to states, notably through block grants	Nixon, Reagan; the Rehnquist Court's revival of limits

Contemporary	Sharp policy divergence between states alongside continued federal reach	Polarisation; <i>Dobbs</i> (2022); state-level divergence on drugs, elections, firearms
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The constitutional machinery

- **Tenth Amendment** — reserves to the states powers not delegated to the federal government nor prohibited to the states.
- **Necessary and proper clause** — the basis of implied powers; *McCulloch v Maryland* (1819) upheld the national bank on it, establishing that the enumerated list is a foundation rather than a ceiling.
- **Commerce clause** — read broadly from the 1930s to justify extensive federal regulation of economic and social life; it supplied part of the constitutional basis for the Civil Rights Act 1964. *United States v Lopez* (1995) reasserted a limit for the first time in decades.
- **Grants** — *categorical* grants carry conditions tied to a defined purpose; *block* grants leave states discretion. Conditions attached to funding allow Washington to shape policy where it has no direct authority.

Debates about federalism

Federal power has grown too far	States retain real power
Fiscal capacity dwarfs the states, so the centre sets the terms	States control education, policing, family law, elections and much criminal law
Broad commerce and necessary-and-proper readings reached areas the enumerated powers never covered	<i>Lopez</i> and later rulings revived limits
Grant conditions shape state policy indirectly	Policy divergence between states is wider now than at any time since the New Deal
The change came through interpretation, which the states could not block	The federal government cannot compel states to administer federal programmes

The judgement worth writing: federalism no longer protects a fixed sphere of state power, which is what the framers designed it to do. It now shelters *policy divergence* where no national majority exists — a substantial change in function. And it carries a cost the original conception did not: when fundamental rights vary by state, federalism protects the states at the expense of uniform citizenship, which is the tension the Fourteenth Amendment was adopted to resolve.

4. Interpretations and debates

Originalism holds that the Constitution means what it meant when adopted; it constrains judicial discretion but freezes meaning against social change. The **living constitution** approach holds that meaning evolves with contemporary values; it adapts but hands unelected judges what is effectively an amending power. The dispute is unresolvable within the terms of the document, which is why it maps onto political disagreement so neatly.

Quick recall

- Codified, entrenched, vague — and the vagueness is why the Court matters
- Amendment: two-thirds of both houses, then three-quarters of states. 27 amendments; the first ten were part of the bargain
- Principles: separation of powers, checks and balances, federalism, limited government, bipartisanship
- Checks: veto/override, confirmation, treaty ratification, judicial review, impeachment, power of the purse
- Federalism: dual → co-operative → New Federalism → contemporary divergence
- *McCulloch* 1819 (implied powers), *Lopez* 1995 (a limit revived)
- Categorical grants carry conditions; block grants leave discretion
- Entrenchment does not prevent change — it determines who makes it